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FEDERAL REGISTER

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Washington, Wednesday, November 5, 1941

The President

EXECUTIVE ORDER

ESTABLISHING A NATIONAL INDIAN INSTITUTE IN THE DEPARTMENT OF THE INTERIOR

WHEREAS on May 26, 1941, the Senate of the United States gave its advice and consent to the ratification of the Convention for the creation of an Inter-American Indian Institute, which was opened for signature at Mexico City on November 1, 1940, and signed on behalf of the United States on November 29, 1940; and

WHEREAS, pursuant to the foregoing, the said Convention was ratified by me on June 6, 1941; and

WHEREAS Article X of the Convention, providing for the creation of National Indian Institutes, is as follows:

1. The nations subscribing to this Convention shall, on such date as they may deem advisable, and within their respective jurisdictions, organize National Indian Institutes. The functions of said Institutes shall, by and large, consist in stimulating interest in and furnishing information about Indian matters to any persons and to public and private institutions. Such National Institutes shall further carry out any studies on these questions that may be of particular interest to the nation concerned.

2. National Indian Institutes shall be affiliated to the Inter-American Indian Institute, to which they shall submit an annual report.

3. The financing, organization and regulations of said National Indian Institutes shall be matters falling exclusively within the purview of the respective Governments;

AND WHEREAS the Department of the Interior is charged by law with the supervision and management of all Indian affairs:

NOW, THEREFORE, by virtue of the authority vested in me as President of the United States, and in effectuation of Article X of the said Convention, it is ordered as follows:

SECTION 1. There is hereby established in the Department of the Interior a National Indian Institute for the United States of America, which Institute shall be affiliated with the Inter-American Indian Institute.

SECTION 2. The National Indian Institute shall:

(a) Initiate and promote collaboration in the fields of Indian administration and the study of the Indian among Federal, State and private agencies, learned societies, and scholars in the United States, and the Inter-American Indian Institute, and through the Institute with governmental agencies, learned societies and scholars in the other American countries.

(b) Collaborate with the Inter-American Indian Institute, learned societies, and foundations in the coordination, development, and administration of research projects and studies relating to the Indian.

(c) Maintain liaison between agencies of the United States Government directly or indirectly concerned with Indian administration or Indian studies in this or other countries for the purpose of coordinating cooperation by the United States with other American nations in regard to Indian matters.

(d) Direct the preparation and publication of materials dealing with Indian administration in the United States of interest to the other American nations, and to publish such other materials as may be required in connection with authorized activities.

(e) Assemble and prepare library material and bibliographies dealing with Indian problems.

(f) Collaborate with the Inter-American Indian Institute in planning for the Inter-American Conference on Indian Life.

(g) Submit an annual report to the Inter-American Indian Institute.

SECTION 3. The Institute shall be managed by a Director who, with other necessary employees, shall be appointed by the Secretary of the Interior, and its functions shall be administered in the Bureau of Indian Affairs. The Institute shall use insofar as practicable such informational, fiscal, personnel, and other

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general business services and facilities as may be made available through the Interior Department or other agencies of the Government.

SECTION 4. There is hereby established a Policy Board of the Institute which shall recommend policies to be followed by the Institute, and which shall be composed of:

(a) The Commissioner of Indian Affairs.

(b) Two or more members, who may be public officers or private citizens, to be appointed by the Secretary of the Interior, at least one of whom shall be an Indian.

(c) One representative designated by the Secretary of State.

(d) One representative designated by the Secretary of Agriculture.

(e) One representative designated by the Smithsonian Institution.

(f) One representative designated by the Librarian of Congress.

In addition to the foregoing, one representative may be designated as a member of the Board by each of the following organizations:

The National Research Council.
The Social Science Research Council.
The American Council of Learned Societies.

SECTION 5. The Chairman of the Board, who shall be designated by the Secretary of the Interior, shall call meetings of the Board, and, subject to the approval of the Board, may establish advisory committees and may designate, as affiliates of the Institute, learned societies and other organizations concerned with the study of the Indian and with Indian welfare.

SECTION 6. The members of the Board and the advisory committees may be reimbursed for necessary traveling expenses and subsistence, as provided by law.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
November 1, 1941.

[No. 8930]

[F. R. Doc. 41-8262; Filed, November 3, 1941; 2:18 p. m.]

EXECUTIVE ORDER

AMENDMENT OF PARAGRAPH 24 OF EXECUTIVE ORDER NO. 1888 OF FEBRUARY 2, 1914, AS AMENDED, RELATING TO CONDITIONS OF EMPLOYMENT IN THE PANAMA CANAL SERVICE

By virtue of the authority vested in me by section 81 of title 2 of the Canal Zone Code, as amended by section 3 of the act approved July 9, 1937, 50 stat. 487, paragraph 24 of Executive Order No. 1888 of February 2, 1914, as amended by Executive Order No. 2514 of January 15, 1917, relating to conditions of employment in the Panama Canal service, is hereby further amended to read as follows:

24. Absences of one-half day or more, when regularly authorized, shall be charged against annual leave. Absences due to illness or injury, when supported by the certificate of an authorized physician in the service of The Panama Canal, shall also be charged against annual leave; but no payment shall be made for time lost on account of illness due to alcoholism or drug addiction, or injury due to the wilful intention of the employee to bring about the injury or death of himself or another.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
Nov. 1, 1941.

[No. 8931]

[F. R. Doc. 41-8261; Filed, November 3, 1941; 2:18 p. m.]

Rules, Regulations, Orders

TITLE 6—AGRICULTURAL CREDIT

CHAPTER II—COMMODITY CREDIT CORPORATION

[1937 CCC Cotton Form SFE]

PART 224—TERMS AND CONDITIONS OF COTTON SALES FOR EXPORT PROGRAM

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224.1 General statement.
224.2 Catalog.
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224.13 Liquidated damages.
224.14 Delivery of cotton.
224.15 Class.
224.16 Weight.
224.17 Damaged cotton.
224.18 Amendments and termination.

§ 224.1 *General statement.* Commodity Credit Corporation hereby offers to sell 1937 crop cotton held by it subject to the terms and conditions hereinafter set forth. This offer and sales made under it shall be known as the "Cotton Sales for Export Program" (referred to hereinafter as the "program").*

*§§ 224.1 to 224.18, inclusive, issued under authority contained in sec. 302 (a) 52 Stat. 43; 7 U.S.C. Sup., 1302.

§ 224.2 *Catalog.* A catalog, showing by lots and by warehouse locations the grade and the staple length of the cotton available for purchase under the program, has been prepared by the Commodity Credit Corporation. This catalog is available upon request to the Corporation, New Orleans, Louisiana, at

a price of $10 each. Each catalog will be accompanied by a list showing the sales price for 15/16 inch middling cotton at each warehouse location. A basis sheet, showing the appropriate premium or discount for cotton of other grades and staples is available upon request to the Corporation, New Orleans, Louisiana.*

§ 224.3 *Price.* The sales price of any particular lot of cotton listed in the catalog shall be determined by applying the appropriate premium or discount, as shown on the appropriate basis sheet prepared by Commodity Credit Corporation, to the price listed for 15/16 inch middling cotton at the location where the cotton is stored. Where compressed cotton is delivered to the purchaser, this sales price shall be subject to an adjustment as provided in § 224.4 hereof.*

§ 224.4 *Compression.* In the event that compressed cotton is delivered to the purchaser, a charge of .15 cents per pound for high density and .12 cents per pound for standard density will be added to the sales value and included in the invoice covering the sale of the cotton.*

§ 224.5 *Storage charges.* The Corporation shall assume all storage charges through the five days following the date of the draft drawn on the purchaser as provided in § 224.14 hereof. Any storage charges accruing through such period which have not been paid by the Corporation at the time of the delivery of the cotton shall be deducted from the sales value and shall be paid by the purchaser.*

§ 224.6 *Limitation on quantity.* Commodity Credit Corporation will not sell more than 100,000 bales of cotton to any one person in reliance upon sales for the exportation of cotton to any one country in the Western Hemisphere; nor will it sell more than 10,000 bales of cotton to any person on any one day. In addition, sales of cotton under this program are subject to the statutory limitation that the Corporation may not sell more than 300,000 bales of cotton owned by it during any calendar month, nor more than 1,500,000 bales of cotton owned by it during any calendar year.*

§ 224.7 *Purchase order.* Persons desiring to purchase cotton shall submit purchase orders by wire in substantially the following form:

The undersigned offers to purchase ------ bales of cotton located at the ---------- warehouse ----------, ----------,
(City) (State)
subject to the provisions of the "Terms and Conditions of Cotton Sales for Export Program" 1937 Cotton Form SFE, and all amendments thereto now in effect. The bales desired are the following:

(Signature)

All purchase orders shall be considered in the order received by the telegraph company as shown by the date appearing thereon. Upon receipt of any purchase order by the Corporation, a check of the stocks available for purchase shall be made. If the cotton ordered is available for purchase and the order is otherwise acceptable, the purchaser will be promptly notified by wire that his order is accepted. If the purchase order cannot be accepted because all or a part of the cotton ordered is not available for purchase, the purchaser shall be promptly notified by wire and may reorder other cotton. No purchase order shall be regarded as accepted until the purchaser receives by wire a notification of such acceptance.*

§ 224.8 *Acceptability of purchase orders.* No purchase order shall be accepted unless the purchaser has previously registered sales for exportation to an approved country of an equivalent quantity of cotton and has submitted to the Corporation either satisfactory evidence of the completion of such sales or a bond meeting the requirements of § 224.12 hereof.*

§ 224.9 *Approved countries.* An approved country shall be a country approved for the purposes of this program by Commodity Credit Corporation. Any person desiring the approval of a particular country should notify Commodity Credit Corporation, New Orleans, Louisiana. Such person shall be promptly notified as to whether his request can be granted. If a country is approved, such approval may be withdrawn at any time, but the effective date of such withdrawal shall not be earlier than twenty-four hours following the sending of a telegram to the person to whom approval was previously given. Only sales for the exportation of cotton to a country from which approval is being withdrawn which are registered prior to the effective date of such withdrawal shall be considered as sales for the exportation of cotton to an approved country. No possession of the United States, other than the Philippine Islands, shall be eligible for approval.*

§ 224.10 *Registration of sales.* Sales of raw cotton for exportation shall be regarded as registered under this program when, and only in the event that, the following requirements have been met:

(a) The sale must have been made during the period from September 18, 1941, to July 31, 1942, for the exportation of cotton to an approved country.

(b) The sale must be reported by wire to Commodity Credit Corporation, New Orleans, Louisiana, not later than twenty-four hours after such sale was confirmed to the domestic shipper by the foreign purchaser.

(c) The wire reporting the sale must state the name and address of the foreign purchaser, the quantity of cotton sold, the price obtained, and the date and exact time of sale.

(d) There must be received by the Corporation within five (5) days after the date the sale was reported to Commodity Credit Corporation by wire certified copies of the telegrams confirming the offer of the cotton and the acceptance thereof by the foreign purchaser.

(e) There must be received by Commodity Credit Corporation, within twenty (20) days after the date the sale was reported to Commodity Credit Corporation by wire in the case of sales for export to Canada and Mexico and within sixty (60) days after such date in the case of sales to other approved countries, a certified copy of an unconditional, fixed-price contract covering the cotton sold.

(f) Such contract must show the sales price, the date of sale, the quantity (number of pounds, gross weight) of cotton sold, the delivery or sailing dates thereon, destination of shipment, the name and address of the parties to the contract, and must call for the exportation of the cotton prior to July 31, 1942.

(g) In the case of sales to countries in the Western Hemisphere, north of the Panama Canal, such sales must have been made directly to a cotton spinner in such country.*

§ 224.11 *Satisfactory evidence of exportation.* Satisfactory evidence of having exported cotton to Canada and Mexico shall be an authenticated landing certificate issued by officials of the Government of the country to which the cotton was exported, showing the place, date, gross weight of the cotton and the name and address of both the person who exported the cotton from the United States and the person to whom it is shipped. Satisfactory evidence of having exported cotton to other countries shall be either (a) an on-board-ship bill of lading, or (b) a shipmaster's receipt, showing the quantity (actual gross weight) of the cotton loaded aboard ship, the date and place of loading, name of vessel, destination of cotton loaded, and name and address of both the person exporting the cotton and the person to whom it is shipped. Satisfactory evidence of the gross weight of the cotton exported shall be a certified weight sheet of the warehouse from which the cotton is shipped for export. Evidence of the exportation of cotton to approved countries, to qualify as satisfactory evidence of exportation hereunder, must be filed with the Corporation at New Orleans, Louisiana, not later than fifteen (15) days after the date of such exportation; and in those cases in which cotton was sold by the Corporation in reliance upon registered sales for future delivery, not later than thirty (30) days after the delivery or sailing date shown on the certified copy of the sales contract filed with the Corporation.*

§ 224.12 *Bond.* The bond required by the Corporation in lieu of satisfactory evidence of exportation shall conform to the specimen form of bond attached hereto and shall be in an amount at least equivalent to 12½ cents per pound for each pound of cotton sold to the purchaser for which satisfactory evidence of

the exportation of an equivalent quantity of cotton to the approved country has not been submitted. The surety on such bond must be a corporate surety approved by Commodity Credit Corporation.*

§ 224.13 *Liquidated damages.* In all cases in which (a) cotton is sold by the Corporation in reliance upon registered sales for future delivery and satisfactory evidence of the exportation of an equivalent quantity of cotton in fulfillment of such sales is not filed within the prescribed time with the Corporation or (b) cotton as to which satisfactory evidence of exportation has been submitted re-enters the United States or its possessions (other than the Philippine Islands) in raw cotton form, the purchaser shall pay to the Corporation, as liquidated damages, the sum of 12½ cents per pound for each pound of such cotton.*

§ 224.14 *Delivery of cotton.* The Corporation, within ten (10) days from the acceptance of any purchase order, will make delivery of the cotton called for by such order by tendering the warehouse receipts representing such cotton attached to a sight draft drawn on the purchaser for the purchase price of such cotton. Such draft must be paid by the purchaser upon presentation.*

§ 224.15 *Class.* All sales will be based solely upon the class shown in the catalog, with no right of arbitration by the purchaser. The class shown in the catalog was determined under the supervision of the Agricultural Marketing Service, United States Department of Agriculture, and conforms to the United States Cotton Standards.*

§ 224.16 *Weight.* The gross weights shown in the warehouse receipts will be used in determining the purchase price and such gross weights shall be conclusive as between the Corporation and the purchaser.*

§ 224.17 *Damaged cotton.* The warehouse receipts contain the obligation of the warehouseman to deliver the bales of cotton represented thereby in good condition. The Corporation will not recognize any liability to the purchaser for loss due to damage.*

§ 224.18 *Amendments and termination.* The terms and conditions of the program in this part may be amended by Commodity Credit Corporation at any time. The effective date of any amendment will be stated therein, and such amendment shall be applicable to purchase orders thereafter received. A copy of every amendment will be mailed promptly to each purchaser of a catalog. Commodity Credit Corporation may terminate this program by making public announcement thereof twenty-four (24) hours prior to the effective date of such termination. In addition to the public announcement of termination, Commodity Credit Corporation will wire a copy of such announcement to each purchaser of a catalog. Such termination shall not be effective with respect to purchase orders submitted prior to the effective date of such termination if such purchase orders are otherwise acceptable.*

Issued at Washington, D. C., October 3, 1941.

[SEAL] COMMODITY CREDIT CORPORATION,
By J. B. HUTSON, *President*

Attest:

SAMUEL H. SABIN,
Secretary.

[F. R. Doc. 41-8279; Filed, November 4, 1941; 11:20 a. m.]

[Amendment No. 1 to 1937 CCC Cotton Form SFE]

PART 224—TERMS AND CONDITIONS OF COTTON SALES FOR EXPORT PROGRAM

1937 CCC Cotton Form SFE–Terms and Conditions of Cotton Sales for Export Program—issued October 3, 1941, is hereby amended as follows:

(1) Paragraph (g) of § 224.10 is amended to read as follows:

§ 224.10 *Registration of sales.*

* * * * *

(g) In the case of sales to countries in the Western Hemisphere, north of the Panama Canal, such sales must have been made directly to a consuming establishment in such country.

(2) Section 224.18 is amended to read as follows:

§ 224.18 *Amendments and termination.* The terms and conditions of the program in this part may be amended by Commodity Credit Corporation at any time. The effective date of any amendment shall be stated therein and such amendment shall only be applicable to transactions relating to sales registered subsequent to the effective date of such amendment. A copy of every amendment shall be mailed promptly to each purchaser of a catalog. Commodity Credit Corporation may terminate this program by making public announcement thereof twenty-four (24) hours prior to the effective date of such termination. In addition to the public announcement of termination, Commodity Credit Corporation shall wire a copy of such announcement to each purchaser of a catalog. Such termination shall not be applicable to transactions relating to sales registered prior to the effective date of such termination.

This amendment shall become effective as of 12:00 Noon, Eastern Standard Time, on October 15, 1941. (Sec. 302 (a), 52 Stat. 43; 7 U.S.C., Sup., 1302)

Issued this 9th day of October 1941, at Washington, D. C.

[SEAL] J. B. HUTSON,
President.

Attest:

SAMUEL H. SABIN,
Secretary.

[F. R. Doc. 41-8117; Filed, October 28, 1941; 3:20 p. m.]

TITLE 7—AGRICULTURE

CHAPTER VII—AGRICULTURAL ADJUSTMENT ADMINISTRATION

[MQ-650]

PART 717—REGULATIONS GOVERNING THE HOLDING OF REFERENDA ON MARKETING QUOTAS

Sec.

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717.3 Voting eligibility.
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717.8 Local arrangements for holding the referendum.
717.9 Issuing ballots to voters.
717.10 Community referendum committee's canvass of ballots and record of results of the referendum.
717.11 County committee's canvass of ballots and record of results of the referendum.
717.12 State committee's record of the result of the referendum.
717.13 Results of referendum.

By virtue of the authority vested in the Secretary of Agriculture by Title III of the Agricultural Adjustment Act of 1938 (Public Law No. 430, 75th Congress, approved February 16, 1938; 52 Stat. 38, 7 U.S.C. 1301 *et seq.*), as amended public notice is hereby given of the following regulations for holding any referendum on marketing quotas under said act as heretofore or hereafter amended, which regulations shall be in force and effect until rescinded or suspended, or amended or superseded by regulations hereafter made under said act.

§ 717.1 *Definitions.* As used in the regulations in this part and in all forms and documents in connection therewith, unless the context or subject matter otherwise requires, the following terms shall have the following meanings and the masculine shall include the feminine and neuter genders and the singular shall include the plural number:

(a) *Act.* The Agricultural Adjustment Act of 1938 and any amendments thereto heretofore or hereafter made.

(b) *Secretary of Agriculture.* The Secretary or Acting Secretary of Agriculture of the United States.

(c) *Administrator.* The Administrator or Acting Administrator of the Agricultural Adjustment Administration of the United States Department of Agriculture.

(d) *Regional director.* The director or acting director of the division of the Agricultural Adjustment Administration in charge of the administration of sections 7 to 17, inclusive, of the Soil Conservation and Domestic Allotment Act (49 Stat. 1148), as amended (herein referred to as the Soil Conservation and Domestic Allotment Act), in the region.

(e) *Southern region.* The area included in the States of Alabama, Arkansas, Florida, Georgia, Louisiana, Mississippi, Oklahoma, South Carolina, and Texas.

(f) *East Central region.* The area included in the States of Delaware, Kentucky, Maryland, North Carolina, Tennessee, Virginia, and West Virginia.

(g) *North Central region.* The area included in the States of Illinois, Indiana, Iowa, Michigan, Minnesota, Missouri, Nebraska, Ohio, South Dakota, and Wisconsin.

(h) *Northeast region.* The area included in the States of Connecticut, Maine, Massachusetts, New Hampshire, New Jersey, New York, Pennsylvania, Rhode Island, and Vermont.

(i) *Western region.* The area included in the States of Arizona, California, Colorado, Idaho, Kansas, Montana, Nevada, New Mexico, North Dakota, Oregon, Utah, Washington, and Wyoming.

(j) *State committee.* The group of persons designated within any State to assist in the administration of the Soil Conservation and Domestic Allotment Act.

(k) *County committee.* The committee, within and for a county, utilized under the Soil Conservation and Domestic Allotment Act.

(l) *Person.* An individual, partnership, firm, joint-stock company, corporation, association, trust, estate, or other legal entity, or a State or political subdivision thereof or any agency of a State or political subdivision thereof.*

*§§ 717.1 to 717.13, inclusive, issued under the authority contained in 52 Stat. 38, 7 U.S.C. 1301, et seq.

§ 717.2 *Agencies through which a referendum shall be conducted*—(a) *Utilization of existing agencies.* The Agricultural Adjustment Administration shall be in charge of and responsible for conducting each referendum on marketing quotas for any commodity required by the Act. Each State committee shall be in charge of and responsible for conducting such referendum in its State. Each county committee shall be responsible for the proper holding of such referendum in its county. It shall be the duty of the Agricultural Adjustment Administration and of each committee to conduct each referendum by secret ballot in a fair, unbiased, and impartial manner in accordance with the regulations in this part.

(b) *Community referendum committee.* In each county with 100 or more farms on which there are producers who are eligible to vote in the referendum, the county committee shall designate for each referendum a community referendum committee for each community or neighborhood in the county in which there are producers who are eligible to vote in the referendum. Each referendum committee shall consist of three members and one alternate chosen from among the farmers who reside in the community or neighborhood and who are eligible to vote in the referendum. The county committee shall name one member of the community referendum committee as chairman and another member thereof as vice chairman. The vice chairman shall act as the chairman in the event of the absence or incapacity of the chairman and the alternate shall serve on the committee in the place of any regular member who cannot serve. The community referendum committee shall be responsible for the proper holding of the referendum in its community or neighborhood by secret ballot in a fair, unbiased, and impartial manner in accordance with the regulations in this part. In counties with less than 100 farms on which there are producers who are eligible to vote in the referendum, the county shall be considered as one community for the purpose of the referendum and the county committee shall perform, in addition to its other duties, the duties of the community referendum committee unless, for any such county, the county committee and the State committee determine that one or more community referendum committees are necessary in the county for the proper holding of the referendum.*

§ 717.3 *Voting eligibility*—(a) *Qualifications of voters.* The qualifications of persons eligible to vote in the referendum for each commodity shall be determined in accordance with the provisions of law applicable thereto prior to the date of holding the referendum and qualifications shall be set forth in the notice of the referendum on the form prescribed by the Secretary of Agriculture. No person shall be entitled to more than one vote, regardless of the number of farms in which he is interested as a producer or the number of the communities, counties, or States in which he is so interested.

(b) *Register of eligible voters.* The county committee shall cause to be prepared on form MQ–651 a register of eligible voters for each community or neighborhood in the county. The register shall contain, insofar as can be ascertained prior to the holding of the referendum, the names and addresses of all persons shown on the records of the county committee or known to it as persons eligible to vote in the referendum in the community or neighborhood. Each register of eligible voters shall be furnished by the county committee to the chairman (or, in his absence, the vice chairman) of the appropriate community referendum committee prior to the time the polls in the county are opened for the acceptance of ballots.*

§ 717.4 *Place for balloting.* The county committee shall designate at least one place for balloting in each community or neighborhood for which a community referendum committee is designated. The polling place shall be one well known to and readily accessible to the persons in the community or neighborhood and shall be equipped and arranged so that each voter can mark and cast his ballot in secret and without coercion, duress, or interference of any sort whatever.*

§ 717.5 *Time of voting.* There shall be no voting except on the day fixed for the holding of the referendum (except as provided herein in the case of voting by mail) and the day fixed for the holding of the referendum shall be the same in all neighborhoods, communities, counties, and States. The date for holding the referendum shall be that determined by the Secretary of Agriculture in accordance with the provisions of law applicable thereto and stated in the notice of the referendum prescribed by him. The county committee shall designate the hour at which the polls in the county shall be opened, which shall be not earlier than 7 o'clock or later than 9 o'clock a. m., local standard time, on the date fixed for holding the referendum. The polls shall be closed at 5 o'clock p. m., local standard time, or such later hour as is fixed by the State committee in order to afford a full and fair opportunity to producers to vote, on the date for holding the referendum.*

§ 717.6 *Notice of referendum*—(a) *Posting a notice.* The county committee shall give public notice in each community or neighborhood of the time and place for balloting in the referendum by posting a notice, on the form prescribed by the Secretary of Agriculture for use in the referendum,[1] at one or more places open to the public within each community or neighborhood at least 5 days in advance of the date of the referendum. The notice shall contain information concerning the commodity and marketing year or years or crops for which the referendum is to be held, the rules governing eligibility to vote, the location of the polling place in the community or neighborhood, the date of the referendum, and the hours when the polls will be opened and closed.

(b) *Use of agencies of public information.* The county committee and community referendum committees shall make use (without advertising expense) of all available agencies of public information, including newspapers, radio, and other means, to give persons in the county full and accurate public notice of the day and hours of voting, the location of polling places, and the rules governing eligibility to vote. Such notice should be given as soon as practicable after the arrangements for holding the referendum in the county have been made, but not later than 5 days in advance of the date of the referendum.*

§ 717.7 *Manner of voting*—(a) *Secret ballot.* The voting in the referendum shall be by secret ballot. Each voter shall, at the time he is handed the form on which to cast his ballot, be instructed to mark his ballot form so as to indicate clearly how he votes and in such manner that no one else shall see how he votes and then to fold his ballot and place it in the ballot box without allowing anyone else to see how he voted. A suitable place where each voter may mark and cast his ballot in secret and without coercion, duress, or interference of any

[1] Cotton 601 filed as part of the original document.

sort whatever shall be provided in each polling place. Every unchallenged ballot shall be placed in the ballot box by the person who voted it. The fact that a voter fails to fold a ballot placed in the ballot box shall not invalidate it. It shall be the duty of each community referendum committee to see that no device of any sort whatever is used whereby any voter's ballot may be identified (except as provided in these regulations in the case of a challenged ballot or a ballot cast by mail).

(b) *Voting by proxy prohibited.* There shall be no voting by proxy, or agent, or in any manner except by the eligible voter personally depositing in the ballot box his ballot as marked by him (except as provided herein in the case of a ballot cast by mail), but a duly authorized member of a partnership, or a duly authorized officer of a corporation, firm, association, or other legal entity, may cast its vote.

(c) *Voting by mail.* Any person who will not be present on the day of the referendum in the county in which he is eligible to vote may obtain one ballot form, prior to or on the day of the referendum, from the office of a county committee conveniently situated for him and cast his ballot by mail. The office of the county committee so issuing the ballot form shall endorse on the reverse side thereof a statement in substantially the following form identifying the county in which it was issued and the county to which it will be mailed, initialed and dated by the person issuing such form: "Issued in _____ County, _____ State for use in _____ County, _____ State." The office of each county committee shall keep a register in duplicate showing for each ballot form so issued by it to be voted by mail the name and address of the person to whom issued, the date of issuance, and the names of the county and State to which the ballot is to be mailed, and the name and title of the person who issued such form. The person to whom the ballot is issued shall mark the ballot so as to indicate clearly how he votes, sign his name and enter his address thereon, and mail it in a sealed envelope, postage paid, marked "Absentee Ballot," to the county committee for the county in which he is eligible to vote. All ballots voted by mail must, in order to be accepted, reach the county committee for the county in which the voter is eligible to vote by not later than the hour for closing the polls in the county for the day of the referendum.

(d) *Challenged ballots.* The community referendum committee shall challenge the eligibility of any person to vote in the referendum where (1) the name of the person does not appear on the register of eligible voters and the community referendum committee is unable to satisfy itself that the person is eligible to vote in the referendum in its community or neighborhood, (2) the community referendum committee is unable to satisfy itself that he has not previously voted in the referendum in another community or neighborhood in the same or another county, by person or by mail, or (3) the community referendum committee is not certain that the person is eligible to vote. In every case where the eligibility of the voter is challenged, his ballot form, after being marked by the challenged person so as to show how he votes but in such a manner that no one else sees how he votes, shall be folded and placed by him (or by the committee if he refuses) in an envelope, which shall then be sealed and identified with his name and address, the word "Challenged", and a statement of the reason for the challenge, and shall then be placed in the ballot box. The county committee shall make an investigation in each case of controversy or dispute regarding the eligibility of a voter to vote in the referendum. In each case of a challenged ballot the eligibility of the person to vote in the referendum shall be determined by the county committee as soon as may be possible after the polls are closed and before the time for forwarding to the State committee the county summary of ballots on form MQ–653. If it is determined that the person whose vote was challenged is eligible to vote, the sealed envelope containing the ballot shall be placed with the challenged ballot of every other person found to be eligible to vote until all challenged ballots have been passed upon by the county committee. If it is not determined that the person whose vote was challenged is eligible, the sealed envelope shall be marked "Not eligible" and signed by a member of the county committee and shall not be opened. When all of the challenged ballots have been passed upon by the county committee, the challenged ballots which were cast by eligible voters shall be opened and tabulated in the county summary of ballots, but no disclosure shall be made as to how any particular person voted.

(e) *Ballot box.* Each polling place shall be furnished with a suitable ballot box. Any container of sufficient size so arranged that no ballot can be seen or removed without breaking seals on the container will be suitable. When strip adhesive paper or corresponding seals are used on the ballot box, such seals shall be signed or initialed by the chairman or a member of the community referendum committee so that breaking or replacing the seal will so destroy or affect the identifying marks as to show that the seal has been tampered with.*

§ 717.8 *Local arrangements for holding the referendum.* The county committee shall see to it that all arrangements for the proper holding of the referendum in accordance with the regulations in this part have been completed prior to the date of the referendum and that full and adequate notice of the time and places for balloting has been given in each community and neighborhood in the county. The county committee shall instruct each community referendum committee concerning its duties and see to it that each member of the committee understands his duties and the duties of the committee in all respects, with particular emphasis as to (a) issuing ballot forms, (b) challenged ballots, (c) recording votes, (d) tabulating ballots, and (e) certifying results of the referendum in the community or neighborhood. The county committee shall allot to each community referendum committee an adequate supply of ballot forms and, prior to the time the polls in the county are opened for the acceptance of ballots, deliver the ballot forms and forms MQ–652, the community summary of ballots, to the chairmen of the several community referendum committees.*

§ 717.9 *Issuing ballots to voters.* The community referendum committee shall open the polls for the issuance of ballot forms and the casting of ballots at the time designated by the county committee and shall thereafter, until the time when the polls are required to be closed and the casting of ballots discontinued, issue a ballot to each person who is eligible to vote and applies for a ballot and to each person who claims to be eligible to vote and insists upon voting even though his eligibility to vote is challenged by the committee. The name and address of each person to whom a ballot form is issued shall, if he is not already listed on the register of eligible voters, be recorded on such register prior to the time the ballot form is issued to him. The community referendum committeeman who issues the ballot form shall at the same time enter in the column headed "Ballot Cast" of the register of eligible voters opposite the name and address of the voter a record of the issuance of the ballot. When the eligibility of the voter is not challenged, the record shall be made by entering in the column headed "Ballot Cast" the letter "X" and the initials of the community referendum committeeman. When the eligibility of the voter is challenged, the record shall be made by entering in the column headed "Ballot Cast" the letter "C" and the initials of the community referendum committeeman. Ballot forms shall be issued and ballots placed in the ballot box only while at least two members serving on the community referendum committee are physically present in the polling place and in position to see each ballot form as it is issued and each ballot as it is placed in the ballot box.*

§ 717.10 *Community referendum committee's canvass of ballots and records of results of the referendum*—(a) *Canvass of ballots.* Immediately after the polls are closed, the community referendum committee shall open the ballot box and canvass the ballots cast. The canvass of the ballots shall be kept open to the public. A ballot shall be considered as a spoiled ballot if it is mutilated or

marked in such a way that it is not possible to determine with certainty the particular question for which the ballot was intended to be counted. The envelopes containing the challenged ballots shall not be opened. The total number of ballots issued as shown on the register of eligible voters shall be determined and the total number of ballots cast, including the spoiled and challenged ballots, shall be determined. The number of ballots cast in favor of and the number of ballots cast in opposition to the marketing quotas for which the referendum was held shall be determined. The spoiled ballots and challenged ballots shall not be considered in favor of or against the marketing quotas. If any member of the community referendum committee should happen to see or learn how any person besides himself voted, whether or not the ballot was challenged, spoiled, or otherwise, he shall not disclose such knowledge to a fellow committeeman or any other person except in an investigation conducted under the regulations in this part.

(b) *Record of results of the referendum.* The community referendum committee shall notify the county committee by telephone, telegraph, messenger, or in person of the preliminary count of the votes on each question and of the number of spoiled and challenged ballots, as soon as may be possible. All the spoiled ballots shall be placed in an envelope and sealed and marked with the initials of the chairman (or vice chairman) of the community referendum committee and the designation "Spoiled Ballots" followed by the number of spoiled ballots and the names of the community or neighborhood, the county, and the State. The community referendum committee shall execute the certification as to the accuracy of the register of ballots cast on form MQ–651. The community referendum committee shall then prepare and execute the community summary of ballots on form MQ–652 and post one copy thereof, as soon as it is executed, at a conspicuous place at the polling place, so that it will remain posted and accessible to the public for at least three calendar days after the holding of the referendum. The community referendum committee shall seal the voted ballots, including those challenged and spoiled, the register of eligible voters and ballots cast, and the community summary of ballots, in one or more envelopes appropriately identified by the names of the community or neighborhood, the county, and the State, and the nature of the referendum and the date on which it was held, and deliver them to the county committee not later than 9 o'clock a. m., local standard time, on the second calendar day next succeeding the date of the referendum, together with the unused ballot forms and other forms. The chairman (or vice chairman) of the community referendum committee shall be responsible for the safe delivery of such reports, ballots, and forms to the county committee.*

§ 717.11 *County committee's canvass of ballots and record of results of the referendum*—(a) *Receiving and tabulating the results of the referendum.* The county committee shall open and canvass the ballots received by mail after the closing of the polls and determine the eligibility of each voter. If any person voting by mail is found to be ineligible to vote or the ballot is so mutilated or marked that it is not possible to determine with certainty how the person intended to vote, such ballot shall not be counted as for or against any particular question in the referendum and shall be tabulated on the county summary of ballots as a spoiled ballot. The county committee shall meet and pass upon the challenged ballots as soon as may be reasonably possible after the challenged ballots are received from the community referendum committees but not later than four days after the day of the referendum. The results of the referendum in each community and neighborhood shall be reviewed and summarized as soon as may be reasonably possible after the records, ballots, and forms are received from the several community referendum committees. Every meeting of the county committee for the purpose of canvassing the ballots cast and reviewing and tabulating the results of the referendum shall be open to the public. No member of the county committee who learns how any person besides himself voted, whether the ballott was received by mail, challenged, spoiled, or otherwise, shall disclose such knowledge to any fellow committeeman or other person except in an investigation conducted under the regulations in this part.

(b) *Record of the results of the referendum.* The county committee shall notify the State committee by telephone, telegraph, or messenger (who may be a member of the county committee) as to the preliminary count of the votes on each question and of the number of challenged ballots reported by the several community referendum committees as soon as possible. The county committee shall, as soon as may be reasonably possible, but in no event later than four calendar days after the date of the referendum, prepare and execute the county summary of ballots on form MQ–653. Form MQ–653 shall be prepared and certified in quadruplicate, two copies of which shall be sent forthwith to the State committee, one copy posted for 30 calendar days in a conspicuous place accessible to the public in or near the office of the county committee, and one copy permanently filed in the office of the county committee and kept available for public inspection. One copy of each community summary on form MQ–652 shall likewise be posted for 30 calendar days in a conspicuous place accessible to the public in or near the office of the county committee.

(c) *Disposition of ballots and records.* The county committee shall seal the voted ballots, challenged ballots found to be ineligible, register sheets, and community summaries for the county in one or more envelopes or packages, plainly marked with the identification of the referendum, the date, and the names of the county and State, and place them under lock and key in a safe place under the custody of the secretary of the county committee for a period of 60 calendar days after the date of the referendum. If no notice to the contrary is received by the end of such time, and after the ballots and other records have been examined by a representative of the State committee, the voted ballots and challenged ballots shall be destroyed but the registers and community and county summary sheets on forms MQ–651, 652, and 653 shall be permanently filed in the office of the county committee.

(d) *Investigations as to the correctness of the summary of the referendum.* The county committee shall make an investigation in each case of a dispute or challenge regarding the correctness of the summary of the referendum in a community or neighborhood. No dispute or challenge shall be investigated by the county committee unless it is brought to its attention within three calendar days after the date on which the referendum was held. The county committee shall promptly decide the dispute or the challenge and report its findings to the State committee within five calendar days after the holding of the referendum and send by registered mail or deliver in person to the office of the State committee all voted ballots, register forms, and community summary sheets involved in the dispute or challenge.*

§ 717.12 *State committee's record of the result of the referendum.* The State committee for each State shall notify the appropriate Regional Director by telegraph or telephone as to the preliminary count of the votes in the State as soon as the preliminary results of the referendum are made known to the State committee. The county summaries of ballots on forms MQ–653 shall be summarized on the State tabulation of ballots on form MQ–654 as soon as possible but in no event later than seven calendar days next succeeding the date of the referendum, unless there is a dispute or challenge regarding the correctness of the summary for any county, in which case the State committee shall complete its investigation thereof and prepare the State tabulation accordingly within fourteen calendar days next succeeding the date of the referendum. The State summary shall be prepared in triplicate and certified to by at least three members of the State committee. The original and one copy of the State summary shall be forwarded via airmail special delivery to the appropriate Regional Director. One copy of the State summary shall be permanently filed in the office of the State committee available for public inspection.*

§ 717.13 *Results of referendum*—(a) *Proclamation of results.* The final and official tabulation of the votes cast in the referendum will be made by the

Agricultural Adjustment Administration and reported to the Secretary of Agriculture and the result of the referendum will be publicly proclaimed by him. The State summaries on forms MQ–654 and related papers shall be permanently filed with such tabulation and shall remain available for public inspection in the Department of Agriculture.

(b) *Unofficial announcements of results.* Each county committee is authorized to give out unofficial reports of the total "Yes" and "No" votes in its county to the public press and other inquirers. Each State committee is authorized to release to the press and other inquirers the unofficial results of the referendum in its State by counties as rapidly as the votes in the various counties are reported to it.

(c) *Investigations.* If the Administrator or the Secretary of Agriculture deems it necessary, the report of any community referendum committee, county committee, or State committee shall be re-examined and checked by such persons or agencies as may be designated.*

Done at Washington, D. C., this 31st day of October 1941. Witness my hand and the seal of the Department of Agriculture.

[SEAL] CLAUDE R. WICKARD,
Secretary of Agriculture.

[F. R. Doc. 41–8260; Filed, November 3, 1941; 12:35 p. m.]

TITLE 10—ARMY: WAR DEPARTMENT

CHAPTER III—CLAIMS AND ACCOUNTS

PART 36—CLAIMS AGAINST THE UNITED STATES [1]

§ 36.19a *Settlement of claims received after termination of maneuvers.* All claims arising from field exercises received after termination of such exercises will be settled by the commanding general of the army, or corps area concerned, or by an officer on his staff, depending upon whether said exercises are army maneuvers or exercises or corps area maneuvers or exercises. (Act Feb. 12, 1940, Public No. 415) [Par. 4*a*, AR 35–7030, May 15, 1940, as amended by Cir. 225, W.D., Oct. 24, 1941]

§ 36.20 *Conditions precedent to payment.*

* * * * *

(c) The award must be approved by the commanding general of the army or the corps area involved, or by an officer on his staff, or by the Secretary of War. (Act Feb. 12, 1940; Public No. 415) [Par. 5*c*, AR 35–7030, May 15, 1940, as amended in Cir. 225, W.D., Oct. 24, 1941]

* * * * *

[SEAL] E. S. ADAMS,
Major General,
The Adjutant General.

[F. R. Doc. 41–8267; Filed, November 4, 1941; 10:10 a. m.]

[1] §§ 36.19a and 36.20 (c) are amended.

TITLE 30—MINERAL RESOURCES

CHAPTER III—BITUMINOUS COAL DIVISION

[Docket Nos. A–1018 and A–1018 Part II]

PART 332—MINIMUM PRICE SCHEDULE, DISTRICT NO. 12

MEMORANDUM OPINION AND ORDER REVISING TEMPORARY RELIEF, CANCELLING HEARING AND CONDITIONALLY PROVIDING FOR FINAL RELIEF IN THE MATTERS OF THE PETITIONS OF DISTRICT BOARD NO. 12 FOR THE ESTABLISHMENT OF PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR THE COALS OF CERTAIN MINES IN DISTRICT NO. 12, AND FOR THE ESTABLISHMENT OF PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR THE COALS OF MINE INDEX NOS. 742, 764, 753, 754, AND 755 IN DISTRICT NO. 12 FOR TRUCK SHIPMENTS

An original petition, pursuant to section 4 II (d) of the Bituminous Coal Act of 1937, was duly filed with this Division by the above-named party requesting the establishment, both temporary and permanent, of price classifications and minimum prices for certain coals produced in District No. 12.

The Director found in his Order dated September 11, 1941, 6 F.R. 5177, issued in Docket No. A–1018, that a reasonable showing of necessity had been made for the granting of temporary relief for the coals of certain of the mines included in the original petition in the above-entitled matter and said Order granted temporary relief and conditionally provided for final relief for these coals. As indicated in a separate Order dated September 11, 1941, issued in Docket No. A–1018 Part II, the Director found that the original petition did not set forth facts to warrant the establishment of the price classifications and minimum prices sought therein for the coals of Mine Index Nos. 742, 764, 753, 754, and 755 without a hearing. On September 20, 1941, an amendment to the original petition was filed setting forth sufficient facts to warrant the granting of temporary relief for these coals in the manner hereinafter set forth, except for the coals of Mine Index No. 742. The amended petition stated that this mine was not operating, that it had not filed a proper acceptance of the Code and requested that all reference to this mine be stricken from the original petition.

No petitions of intervention having been filed with this Division in the above-entitled matter; and

The Director deeming his action necessary in order to effectuate the purposes of the Act;

Now, therefore, it is ordered, That the temporary prices established in the Director's Order dated September 11, 1941, 6 F.R. 4717, in Docket No. A–1018 Part II, for the coals of Mine Index No. 742 of the Delpierre and Davis Coal Company are deleted and that all reference to Mine Index No. 742 be, and the same hereby is, stricken from the afore-mentioned Order.

It is further ordered, That the temporary relief granted by the Director's Order dated September 11, 1941, in Docket No. A–1018 Part II be, and the same hereby is, revised as follows: Commencing forthwith, the prices established in said Order for Mine Index Nos. 764, 753, 754, and 755 shall be deleted and in lieu thereof, pending final disposition of the original petition, as amended, in the above-entitled matter, the coals of the aforesaid Mine Index Numbers temporarily shall be subject to prices as provided in Supplement T, § 332.24 (*General prices in cents per net ton for shipment into all market areas*), which supplement is hereinafter set forth and hereby made a part hereof.

It is further ordered, That the hearing in Docket No. A–1018 Part II, heretofore scheduled for 10 o'clock in the forenoon of October 21, 1941, at a hearing room of the Bituminous Coal Division, 734 Fifteenth Street NW., Washington, D. C., be, and the same hereby is, cancelled.

It is further ordered, That pleadings in opposition to the original petition, as amended, in the above-entitled matter and applications to stay, terminate or modify the temporary relief herein granted may be filed with the Division within forty-five (45) days from the date of this Order, pursuant to the Rules and Regulations Governing Practice and Procedure before the Bituminous Coal Division in Proceedings Instituted Pursuant to section 4 II (d) of the Bituminous Coal Act of 1937.

It is further ordered, That the relief herein granted shall become final sixty (60) days from the date of this Order, unless the Director shall otherwise order.

Dated: October 17, 1941.

[SEAL] H. A. GRAY,
Director.

TEMPORARY AND CONDITIONALLY FINAL EFFECTIVE MINIMUM PRICES FOR DISTRICT NO. 12

NOTE: The material contained in this supplement is to be read in the light of the classifications, prices, instructions, exceptions, and other provisions contained in Part 332, Minimum Price Schedule for District No. 12 and supplements thereto.

FOR TRUCK SHIPMENTS

§ 332.24 *General prices in cents per net ton for shipment into all market areas*—Supplement T

[Prices in cents per net ton for shipment into all market areas]

Code member index	Mine name	Mine No.	Group No.	County	Chunk	Standard lump	Egg 8 x 2", 6 x 2"	Small egg 4 x 2", 3 x 1½"	Mine run	Nut 2 x 1¼", 1¼ x ¾"	Dom. stoker 1¼", 1 x 5/16"	Screenings 2", 1½", 1¼ x 0	Ind. stoker Cr. 2", 1½", 1¼" x 0	5/16" x 0
					1	2	3	4	5	6	7	8	9	10
Blue Goose Coal Co. (Everett Green).	Blue Goose	764	18	Marion	298	288	278	268	268	268	268	158	218	100
Curtis, Evert (Curtis Coal Co.).	Curtis Coal Co	753	17	Warren	307	297	287	277	267	267	267	162	222	100
Howell Coal Co. (Arthur V. Howell).	Howell Coal Co	754	33	Adams	356	346	346	346	346	336	336	246	336	150
Peewee Coal Co. c/o Chas. Brady.	Peewee No. 2	755	18	Marion	297	728	727	267	267	267	267	157	217	100

[F. R. Doc. 41-8235; Filed, November 3, 1941; 9:57 a. m.]

[Docket No. A-1067]

PART 332—MINIMUM PRICE SCHEDULE, DISTRICT NO. 12

ORDER CORRECTING COPIES OF THE ORDER GRANTING TEMPORARY RELIEF AND CONDITIONALLY PROVIDING FOR FINAL RELIEF IN THE MATTER OF THE PETITION OF DISTRICT BOARD NO. 12 FOR THE ESTABLISHMENT OF PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR THE COALS OF CERTAIN MINES IN DISTRICT 12

An Order Granting Temporary Relief and Conditionally Providing for Final Relief having been issued in the above-entitled matter on October 9, 1941, 6 F.R. 5452; and

It appearing that although the original Order was correct the printed copies thereof show Mine Origin Group No. 70 for the coals of the Neal Howard Coal Company Mine (Mine Index No. 72), whereas the correct Mine Origin Group number for the coals of the Neal Howard Coal Company Mine is No. 68;

Now, therefore, it is ordered, That the copies of the Order Granting Temporary Relief and Conditionally Providing for Final Relief dated October 9, 1941, be and the same hereby are corrected to the extent that Mine Origin Group No. 70 shown for the coals of the Neal Howard Coal Company Mine (Mine Index No. 72) in Supplement R, § 332.2 (*Alphabetical list of code members*), is changed to Mine Origin Group No. 68.

Dated: November 1, 1941.

[SEAL] H. A. GRAY, *Director.*

[F. R. Doc. 41-8278; Filed, November 4, 1941; 10:35 a. m.]

No. 216——2

TITLE 32—NATIONAL DEFENSE

CHAPTER IX—OFFICE OF PRODUCTION MANAGEMENT

SUBCHAPTER B—PRIORITIES DIVISION

PART 987—COBALT

General Preference Order M-39 to Conserve the Supply and Direct the Distribution of Cobalt

Whereas the uncertainty of shipments of Cobalt from abroad, and the national defense requirements for Cobalt have created a shortage thereof, for defense, for private account, and for export and it is necessary in the public interest and to promote the defense of the United States, to conserve the supply and direct the distribution thereof;

Now, therefore, it is hereby ordered, That:

§ 987.1 *General preference order M-39*—(a) *Definitions.* For the purposes of this order:

(1) "Cobalt" means and includes:

(i) Ores, concentrates and residues, including beneficiated or treated forms containing Cobalt (commercially recognized).

(ii) The element Cobalt in any form, and combinations with other elements in which Cobalt is an essential constituent.

(iii) All chemical compounds in which Cobalt is an essential and recognizable component.

(iv) All scrap or secondary material containing commercially recoverable Cobalt as defined in (i), (ii), and (iii) above.

(2) "Producer" means any person who mines or otherwise produces natural materials containing recoverable quantities of Cobalt.

(3) "Processor" means any person who uses Cobalt in any form for the manufacture of or conversion into Cobalt chemical compounds or metallurgical forms of Cobalt.

(4) "Dealer" means any person who procures Cobalt either by importing or from domestic sources for resale without change in form, whether or not such person receives title to or physical delivery of the material, and includes selling agents, warehousemen, and brokers.

(b) *Regulations incorporated.* Except as modified by the terms of this order and as otherwise specifically provided herein, all of the provisions and definitions of Priorities Regulation No. 1, issued by the Director of Priorities on August 27, 1941 (Part 944), as amended from time to time, are hereby included as a part of this order with the same effect as if specifically set forth herein.

(c) *Assignment of preference rating to certain defense orders.* Deliveries of Cobalt under all defense orders (as defined in Regulation No. 1) to which a preference rating of A-10 or higher has not been specifically assigned are hereby assigned a preference rating of A-10.

(d) *Forms to be filed before receiving delivery.* Hereafter any person seeking delivery of Cobalt shall file with the Division of Priorities, not later than the 20th day of the month next preceding the month in which delivery is specified, Forms PD-152 and PD-153 or such other form or forms as the Division of Priorities may from time to time prescribe. The Director of Priorities may in his discretion from time to time issue specific directions exempting particular customers or classes of customers from the provisions of this paragraph (d) on the basis of the limited character of their requirements for Cobalt.

(e) *Allocation of deliveries of certain forms of cobalt.* In addition to all other limitations and restrictions contained in this order, beginning November 1, 1941, no person shall make or accept delivery of Cobalt in any of the forms specified in paragraphs (a) (1) (i) and (a) (1) (ii) above, or of Cobalt chemical compounds to be processed into Cobalt metal, except as specifically authorized by the Director of Priorities. During each calendar month, the Director of Priorities will at such time or times as he may determine allocate the supply of Cobalt in the forms specified in paragraphs (a) (1) (i) and (a) (1) (ii) above, and of Cobalt chemical compounds to be processed into Cobalt metal, among persons seeking deliveries thereof, and specifically direct the manner and quantities in which deliveries may be made and accepted. In making any such allocations and directions, the Director of Priorities may take into consideration any person's stocks on hand and supply otherwise available to him, of Cobalt in the forms

mentioned, and of scrap or secondary material containing commercially recoverable Cobalt. Such allocations and directions will be made primarily to insure satisfaction of all defense requirements of the United States, both direct and indirect, and they may be made, in the discretion of the Director of Priorities without regard to any preference ratings assigned to particular contracts or purchase orders.

(f) *Limitations on deliveries and manufacture of certain cobalt chemical compounds.* Unless otherwise ordered by the Director of Priorities:

(i) Beginning October 1, 1941, the aggregate weight of Cobalt chemical compounds delivered by any processor or dealer during any calendar month which will be used for purposes other than manufacturing Cobalt metal shall not exceed 90% of the average monthly aggregate weight of such compounds delivered by such processor or dealer for such purposes during the first six months of 1941;

(ii) During the period from October 1, 1941, to March 31, 1942, inclusive, the aggregate weight of Cobalt chemical compounds not commercially convertible into Cobalt metal, which may be processed or manufactured by any processor, shall be limited to 90% of the aggregate weight of such compounds processed or manufactured by him during the first six months of 1941.

(g) *Violations.* Any person affected by this order who violates any of its provisions or a provision of any other order issued by the Director of Priorities, may be prohibited by the Director from making or receiving deliveries of Cobalt, or he may be subjected to such other or further action as the Director may deem appropriate.

(h) *Effective date.* This order shall take effect immediately upon its issuance, and unless sooner terminated by direction of the Director of Priorities, shall expire on the 31st day of March 1942. (P.D. Reg. 1, Aug. 27, 1941, 6 F.R. 4489; OPM Reg. 3, as amended Sept. 2, 1941; E.O. 8629, Jan. 7, 1941, 6 F.R. 191, E.O. 8875, Aug. 28, 1941, 6 F.R. 4483; sec. 2 (a), Public No. 671, 76th Congress, Third Session, as amended by Public No. 89, 77th Congress, First Session; sec. 9, Public No. 783, 76th Congress, Third Session)

Issued this 4th day of November 1941.

DONALD M. NELSON,
Director of Priorities.

[F. R. Doc. 41-8264; Filed, November 4, 1941; 9:49 a. m.]

CHAPTER XI—OFFICE OF PRICE ADMINISTRATION

PART 1314—RAW MATERIALS FOR SHOES AND LEATHER PRODUCTS

AMENDMENTS TO PRICE SCHEDULE NO. 9—HIDES, KIPS AND CALFSKINS

Sections 1314.12 and 1314.15 of Price Schedule No. 9[1] are hereby amended in the following respects:

Section 1314.12[2] (Appendix B, maximum prices for domestic kips and calfskins) is hereby amended by striking therefrom the last paragraph thereof, which reads as follows:

Effective Date of This Amendment

This amendment shall become effective October 22, 1941: *Provided, however,* That firm commitments entered into prior to October 22, 1941, for the sale of hides, kips or calfskins at prices not exceeding the maximum prices established by Price Schedule No. 9, as heretofore amended, may be completed at contract prices: *Provided,* That all deliveries pursuant to such firm commitments are completed on or before December 22, 1941.

Section 1314.15 is hereby amended to read as follows:

§ 1314.15 *Effective dates of amendments.* (a) The amendments issued September 12, 1941,[3] adding §§ 1314.7a and 1314.15 and amending §§ 1314.10, 1314.11 and 1314.12 shall become effective September 13, 1941: *Provided,* That firm commitments entered into prior to September 13, 1941, for the sale of hides, kips or calfskins at prices not exceeding the maximum prices established by Price Schedule No. 9 prior to such amendments may be completed at contract prices: *Provided,* That all deliveries pursuant to such firm commitments are completed on or before November 15, 1941.

(b) The amendments issued October 21, 1941,[4] amending §§ 1314.4, 1314.11 and 1314.12 shall become effective October 22, 1941: *Provided,* That firm commitments entered into prior to October 22, 1941, for the sale of hides, kips or calfskins at prices not exceeding the maximum prices established by Price Schedule No. 9, as amended, but prior to the amendments issued October 21, 1941, may be completed at contract prices, provided that all deliveries pursuant to such firm commitments are completed on or before December 22, 1941. (Executive Orders Nos. 8734, 8875, 6 F.R. 1917, 4483)

Issued this 3d day of November 1941.

LEON HENDERSON,
Administrator.

[F. R. Doc. 41-8263; Filed, November 4, 1941; 9:35 a. m.]

CHAPTER XIII—OFFICE OF PETROLEUM COORDINATOR FOR NATIONAL DEFENSE

[Recommendation No. 7, Amendment]

PART 1500—ADMINISTRATIVE

GENERAL

Pursuant to the President's letter of May 28 establishing the Office of Petroleum Coordinator for National Defense, § 1500.6 (Recommendation No. 7, dated August 18, 1941, 6 F.R. 5017) is hereby amended to read as follows:

§ 1500.6 *Public information.* The functions of Industry Committees are in the public interest and are well able to undergo public examination. It is the responsibility of committees to see that the public is promptly and accurately informed as to actions taken and decisions reached. The means by which this is done is left to the discretion of the committees.

It is equally the responsibility of the committees to see that other members of the industry are kept informed on discussions of proper interest to them, or on matters under consideration which would affect the operations and planning of the industry. There may be occasions when such information can be most expeditiously disseminated to the industry through the press. The means for carrying out this dissemination likewise is left to the discretion of the committees.

The responsibility for handling public information or directing industry attention is up to the committees themselves, and they are expected to act within the dictates of discretion and judgment. They should avoid speculation and prophecy. Discussion of policy and action should be kept on the level of fact.

Problems of public relations may always be taken up with the Office of the Deputy Coordinator at any time, and correspondence on this subject is invited by him. (President's letter of May 28, 1941, to the Secretary of the Interior, 6 F.R. 2760)

R. K. DAVIES,
Acting Petroleum Coordinator, for National Defense.

OCTOBER 30, 1941.

[F. R. Doc. 41-8270; Filed, November 4, 1941; 10:11 a. m.]

RECOMMENDATION NO. 4

REVOCATION

Pursuant to the President's letter of May 28 establishing the Office of Petroleum Coordinator for National Defense, Recommendation No. 4[1] of July 31, 1941, is hereby revoked, effective immediately.

HAROLD L. ICKES,
Petroleum Coordinator for National Defense.

OCTOBER 23, 1941.

[F. R. Doc. 41-8269; Filed, November 4, 1941; 10:11 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

CHAPTER I—INTERSTATE COMMERCE COMMISSION

[Ex Parte No. 147]

SUBCHAPTER C—CARRIERS BY WATER

PART 315—EXEMPTION OF CONTRACT CARRIERS

Towage of Floating Objects

At a Session of the Interstate Commerce Commission, Division 4, held at its office in Washington, D. C., on the 29th day of October, A. D. 1941.

[1] 6 F.R. 2909.

[2] 6 F.R. 5429.
[3] 6 F.R. 4736.
[4] 6 F.R. 5428.

[1] 6 F.R. 5014.

It appearing, That numerous carriers by water are engaged in towing empty vessels to and from shipyards, floating objects such as logs and piling in rafts, and derricks, dredges, tanks, caissons, pontoons, and other floating objects of varying shapes, sizes and drafts which are not designed or used for the carrying of passengers and property; that because of the inherent nature of the commodities transported, or their requirement of special equipment, such transportation is not actually and substantially competitive with transportation by any common carrier subject to part I, II, or III of the Interstate Commerce Act; that carriers engaged in such transportation under individual agreements or contracts are contract carriers by water; and the divisions so finding; therefore,

It is ordered, That the following regulation shall become effective December 4, 1941, and shall continue in effect until the further order of the Commission.

§ 315.2 *Towage of floating objects.* Transportation by contract carriers of empty vessels to and from shipyards, floating objects such as logs and piling in rafts, and derricks, dredges, tanks, caissons, pontoons, and other floating objects of varying shapes, sizes and drafts which are not designed or used for the carrying of passengers and property, is hereby exempted from the requirements of part III of the Interstate Commerce Act until the further order of the Commission. (Sec. 303 (e), 54 Stat. 932; 49 U.S.C. 903)

By the Commission, division 4.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 41-8283; Filed, November 4, 1941; 11:44 a. m.]

Notices

WAR DEPARTMENT.

[Contract No. W 535 ac-20893; 5495]

SUMMARY OF CONTRACT FOR SUPPLIES

CONTRACTOR: THE GOODYEAR TIRE & RUBBER COMPANY, INC. AKRON, OHIO

Contract for: * * * Life Rafts Type * * *.

Amount: $1,491,840.00.

Place: Matériel Division, Air Corps, U. S. Army, Wright Field, Dayton, Ohio.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and are chargeable to the following Procurement Authorities, the available balances of which are sufficient to cover cost of same:

AC 299 P 111-30 A 0021-13
AC 34 P 12-30 A 0705-12
AC 28 P 82-30 A 0705-12

This contract,[1] entered into this 28th day of August, 1941.

ARTICLE 1. *Scope of this contract.* The contractor shall furnish and deliver * * * Life Rafts, Type * * *, for the consideration stated one million four hundred ninety-one thousand eight hundred forty dollars ($1,491,840.00) in strict accordance with the specifications, schedules and drawings, all of which are made a part hereof.

ART. 2. *Changes.* Where the supplies to be furnished are to be specially manufactured in accordance with drawings and specifications, the contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings or specifications, except Federal Specifications. Changes as to shipment and packing of all supplies may also be made as above provided.

ART. 5. *Delays—Damages.* If the contractor refuses or fails to make deliveries of the materials or supplies within the time specified in Article 1, or any extension thereof, the Government may by written notice terminate the right of the contractor to proceed with deliveries or such part or parts thereof as to which there has been delay.

ART. 8. *Payments.* The contractor shall be paid, upon the submission of properly certified invoices or vouchers, the prices stipulated herein for articles delivered and accepted or services rendered, less deductions, if any, as herein provided. Unless otherwise specified, payments will be made on partial deliveries accepted by the Government when the amount due on such deliveries so warrants; or, when requested by the contractor, payments for accepted partial deliveries shall be made whenever such payments would equal or exceed either $1,000 or 50 percent of the total amount of the contract.

ART. 20. *Options.* The Government is granted the right and option at any time during the life of this contract to increase the quantity of Life Rafts called for under the terms of Article 16 of this contract to any amount not exceeding * * * at not more than the unit price stipulated for such Life Rafts in Article 1 hereof.

ART. 25. *Termination when Contractor not in Default.* If, in the opinion of the contracting officer upon the approval of the Secretary of War, the best interests of the Government so require, this contract may be terminated by the Government, even though the contractor be not in default, by a notice in writing relative thereto from the contracting officer to the contractor.

ART. 36. *Price adjustment.* The contract prices stated in this contract for Type * * * Life Rafts are subject to adjustments for changes in labor and material costs.

General. It is expressly agreed that quotas for labor will not be altered on account of delays in the completion of the Life Rafts.

This contract authorized under the provisions of section 1 (a), Act of July 2, 1940, section 9, Act of June 30, 1941.

FRANK W. BULLOCK,
Lt. Col., Signal Corps,
Assistant to the Director of Purchases and Contracts.

[1] Approved by the Under Secretary of War September 25, 1941.

[F. R. Doc. 41-8265; Filed, November 4, 1941; 10:10 a. m.]

[Contract No. W 535 ac-20863; 5460]

SUMMARY OF CONTRACT FOR SUPPLIES

CONTRACTOR: WESTON ELECTRICAL INSTRUMENT CORPORATION, NEWARK, NEW JERSEY

Contract for: Bulbs, Indicators, Tachometers and Data.

Amount: $1,554,435.12.

Place: Matériel Division, Air Corps, U. S. Army, Wright Field, Dayton, Ohio.

The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in, and are chargeable to the following Procurement Authorities, the available balances of which are sufficient to cover cost of same:

AC 34 P 12-30 A 0705-12
AC 28 P 82-30 A 0705-12
AC 299 P 111-30 A 0021-13
AC 18 P 82-30 A 0705-02
AC 32 P 12-30 A 0705-02

This contract,[1] entered into this 9th day of September 1941.

ARTICLE 1. *Scope of this contract.* The contractor shall furnish and deliver bulbs, indicators, tachometers and data for the consideration stated one million five hundred fifty four thousand four hundred thirty five dollars and twelve cents ($1,554,435.12) in strict accordance with the specifications, schedules and drawings, all of which are made a part hereof.

ART. 2. *Changes.* Where the supplies to be furnished are to be specially manufactured in accordance with drawings and specifications, the contracting officer may at any time, by a written order, and without notice to the sureties, make changes in the drawings or specifications, except Federal Specifications. Changes as to shipment and packing of all supplies may also be made as above provided.

ART. 5. *Delays—Damages.* If the contractor refuses or fails to make deliveries of the materials or supplies within the time specified in Article 1, or any extension thereof, the Government may by

[1] Approved by the Under Secretary of War September 15, 1941.

written notice terminate the right of the contractor to proceed with deliveries or such part or parts thereof as to which there has been delay.

ART. 8. *Payments.* The contractor shall be paid, upon the submission of properly certified invoices or vouchers, the prices stipulated herein for articles delivered and accepted or services rendered, less deductions, if any, as herein provided. Unless otherwise specified, payments will be made on partial deliveries accepted by the Government when the amount due on such deliveries so warrant; or, when requested by the contractor, payments for accepted partial deliveries shall be made whenever such payments would equal or exceed either $1,000 or 50 percent of the total amount of the contract.

ART. 21. *Option.* The Government is granted the right and option at any time during the life of this contract to increase the quantity or quantities of the articles called for under the terms of Article 16 of this contract to any quantity not exceeding the quantity applicable to each respective item set forth herein at not more than the unit prices specified for such articles in Article 16 herein.

ART. 25. *Termination when contractor not in default.* If, in the opinion of the contracting officer upon the approval of the Secretary of War, the best interests of the Government so require, this contract may be terminated by the Government, even though the contractor be not in default by a notice in writing relative thereto from the contracting officer to the contractor.

This contract authorized under the provisions of section 1 (a), Act of July 2, 1940, and section 9, Act of June 30, 1941.

FRANK W. BULLOCK,
Lt. Col., Signal Corps,
Assistant to the Director of Purchases and Contracts.

[F. R. Doc. 41-8266; Filed, November 4, 1941; 10:10 a. m.]

DEPARTMENT OF THE INTERIOR.

Bituminous Coal Division.

[Docket No. 1624-FD]

IN THE MATTER OF COAL HILL MINING COMPANY, REGISTRATION NO. 1675, RESPONDENT

ORDER POSTPONING HEARING

The above entitled matter having been heretofore scheduled for hearing at 2 o'clock in the afternoon of November 4, 1941, at a hearing room and place to be designated by an appropriate Order of the Director; and

The Director deeming it advisable that said hearing should be postponed;

Now, therefore, it is ordered, That the hearing in the above entitled matter be and the same is hereby postponed to a date and at a hearing room to be hereafter designated by an appropriate Order of the Director.

Dated: November 3, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-8268; Filed, November 4, 1941; 10:32 a. m.]

[Docket No. 1623-FD]

IN THE MATTER OF POWER FUEL COMPANY, INC., REGISTRATION NO. 7427, RESPONDENT

ORDER POSTPONING HEARING

The above entitled matter having been heretofore scheduled for hearing at 2 o'clock in the afternoon of November 4, 1941, at a hearing room and place to be designated by an appropriate Order of the Director; and

The Director deeming it advisable that said hearing should be postponed;

Now, therefore, it is ordered, That the hearing in the above entitled matter be and the same is hereby postponed to a date and at a hearing room to be hereafter designated by an appropriate Order of the Director.

Dated: November 3, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-8272; Filed, November 4, 1941; 10:32 a. m.]

[Docket No. 1721-FD]

IN THE MATTER OF JOHN E. BROWN, DEFENDANT

CEASE AND DESIST ORDER

A complaint having been filed with the Bituminous Coal Division pursuant to the provisions of Sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937, by District Board 15, complainant, alleging wilful violation by John E. Brown, a code member in District 15, the defendant, of the Bituminous Coal Code, Rules and Regulations thereunder as follows: That the defendant with full knowledge of the requirements contained in the Schedule of Effective Minimum Prices for District No. 15 for Truck Shipments, and with intent to violate the same, and in violation thereof, sold between October 1, 1940, and March 31, 1941, 921.375 tons of lump coal (Size Group 2) at $2.20 per net ton f. o. b. the mine for truck shipments; whereas the effective minimum price established for such coal is $3.30 per net ton f. o. b. the mine;

Pursuant to an Order of the Director and after notice to all interested persons, a hearing having been held in this matter on September 29, 1941, before D. C. McCurtain, a duly designated Examiner of the Division at a hearing room thereof; all parties having joined in waiving the preparation and filing of a report by the Examiner;

The record of the proceeding thereupon having been submitted to the undersigned for consideration;

The undersigned having made Findings of Fact, Conclusions of Law and having rendered an Opinion, which are filed herewith; [1]

Now, therefore, it is ordered, That the defendant, John E. Brown, his officers, representatives, agents, servants, employees, and attorneys, and all persons acting or claiming to act in his behalf or interest, cease and desist, and they are hereby permanently enjoined and restrained from selling and offering to sell coal produced by the defendant at prices below the applicable minimum prices established therefor contrary to the Bituminous Coal Act or any rules and regulations promulgated thereunder, the Bituminous Coal Code; the Schedule of Effective Minimum Prices for District No. 15 for Truck Shipments; and Marketing Rules and Regulations.

It is further ordered, That if the defendant fails to comply with this order the Division may forthwith apply to the Circuit Court of Appeals of the United States within any circuit where such defendant carries on business or the United States Circuit Court of Appeals for the District of Columbia for the enforcement hereof, or may reopen the case for further proceedings under the conditions contained in section 5 (b) of the Act.

Dated: November 1, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-8273; Filed, November 4, 1941; 10:32 a. m.]

[Docket No. A-1112]

PETITION OF THE BOWIE COAL COMPANY, A CODE MEMBER IN DISTRICT NO. 2, FOR CHANGE IN LOADING POINT

ORDER GRANTING TEMPORARY RELIEF AND CONDITIONALLY PROVIDING FOR FINAL RELIEF

An original petition, pursuant to section 4 II (d) of the Bituminous Coal Act of 1937, having been duly filed with this Division by the above-named party, requesting permission to change the loading point of its Weigle mine (Mine Index No. 948) from Grove City, Pennsylvania and Harrisville, Pennsylvania, both located on the Bessemer and Lake Erie Railroad, to Atwell Siding, Annandale, Pennsylvania on the Bessemer and Lake Railroad, to Atwell Siding, Annandale, ting the petitioner to load his coal on the railroad at a point five miles nearer to his mine; and

The Director finding that a reasonable showing of necessity has been made for the granting of temporary relief in the manner hereinafter set forth; and

[1] Not filed with original document.

No petitions of intervention having been filed with the Division in the above-entitled matter; and

The Director deeming his action necessary in order to effectuate the purposes of the Act;

Now, therefore, it is ordered, That, pending final disposition of the above-entitled matter, temporary relief be, and the same hereby is granted as follows: Commencing forthwith, all shipments from petitioner's Weigle mine (Mine Index No. 948) on the Bessemer and Lake Erie Railroad may be made from Atwell Siding, Annandale, Pennsylvania, and no further shipments on the Bessemer and Lake Erie Railroad shall be made by petitioner from Grove City, Pennsylvania and Harrisville, Pennsylvania. All adjustments required or permitted mines in Freight Origin Group No. 20 shall be applicable to shipments of these coals from the Atwell Siding, Annandale, Pennsylvania.

It is further ordered, That pleadings in opposition to the original petition in the above-entitled matter and applications to stay, terminate or modify the temporary relief herein granted may be filed with the Division within forty-five (45) days from the date of this Order, pursuant to the Rules and Regulations Governing Practice and Procedure before the Bituminous Coal Division in Proceedings Instituted Pursuant to section 4 II (d) of the Bituminous Coal Act of 1937.

It is further ordered, That the relief herein granted shall become final sixty (60) days from the date of this Order, unless the Director shall otherwise order.

Dated: November 3, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-8274; Filed, November 4, 1941; 10:33 a. m.]

[Docket No. A-1092]

PETITION OF DISTRICT BOARD NO. 11 FOR THE ESTABLISHMENT OF PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR THE COALS OF CERTAIN MINES IN DISTRICT NO. 11 FOR RAIL SHIPMENT

[Docket No. A-1092, Part II]

PETITION OF DISTRICT BOARD NO. 11 FOR THE ESTABLISHMENT OF PRICE CLASSIFICATIONS AND MINIMUM PRICES FOR THE COALS OF THE ALLEN MINE OF THE ALLEN COAL COMPANY, INC., IN DISTRICT NO. 11 FOR RAIL SHIPMENTS ORIGINATING AT STEVENSON, INDIANA

MEMORANDUM OPINION AND ORDER SEVERING DOCKET NO. A-1092 PART II FROM DOCKET NO. A-1092 AND NOTICE OF AND ORDER FOR HEARING IN DOCKET NO. A-1092 PART II

The original petition in the above-entitled matter filed with this Division, pursuant to section 4 II (d) of the Bituminous Coal Act of 1937, requests the establishment of temporary and permanent price classifications and minimum prices for the coals of certain mines in District No. 11.

As the Director found in a separate Order issued in Docket No. A-1092, a reasonable showing of necessity has been made for the granting of the relief prayed for by petitioner except in so far as the establishment of price classifications and minimum prices for the coals of the Allen Mine of the Allen Coal Company, Inc., for rail shipments originating at Stevenson, Indiana, is concerned.

The Director is of the opinion that no price classifications and minimum prices should be established for the coals of the Allen Mine of the Allen Coal Company, Inc., for rail shipments originating at Stevenson, Indiana, without a hearing for the reason that no freight rates for coal shipments from this point have been published.

Now, therefore, it is ordered, That the portion of Docket No. A-1092 relating to the Allen Mine of the Allen Coal Company, Inc., be and the same hereby is severed from the remainder of Docket No. A-1092 and designated as Docket No. A-1092 Part II.

It is further ordered, That a hearing in Docket No. A-1092 Part II under the applicable provisions of said Act and the rules of the division be held on December 15, 1941, at 10 o'clock in the forenoon of that day, at hearing room of the Bituminous Coal Division, 734 Fifteenth Street NW., Washington, D. C. On such day the Chief of the Records Section in Room 502 will advise as to the room where such hearing will be held.

It is further ordered, That Joseph A. Huston or any other officer or officers of the Division duly designated for that purpose shall preside at the hearing in such matter. The officers so designated to preside at such hearing are hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, subpoena witnesses, compel their attendance, take evidence, require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, to continue said hearing from time to time, and to prepare and submit to the Director proposed findings of fact and conclusions and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to all parties herein and to persons or entities having an interest in these proceedings and eligible to become a party herein. Any person desiring to be admitted as a party to this proceeding may file a petition of intervention in accordance with the rules and regulations of the Bituminous Coal Division in proceedings instituted pursuant to section 4 II (d) of the Act, setting forth the facts on the basis of which the relief in the original petition is supported or opposed or on the basis of which other relief is sought. Such petitions of intervention shall be filed with the Bituminous Coal Division on or before December 10, 1941.

All persons are hereby notified that the hearing in the above-entitled matter and any orders entered therein may concern, in addition to the matters specifically alleged in the petition, other matters necessarily incidental and related thereto, which may be raised by amendment to the petition, petitions of interveners or otherwise, or which may be necessary corollaries to the relief, if any, granted on the basis of this petition.

The matter concerned herewith is in regard to the petition of District Board No. 11 for the establishment of price classifications and minimum prices for the coals of the Allen Mine of the Allen Coal Company, Inc., in District No. 11 for rail shipments originating at Stevenson, Indiana.

Dated: November 3, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-8275; Filed, November 4, 1941; 10:33 a. m.]

[Docket No. 1711-FD]

IN THE MATTER OF J. C. ROMAN, DEFENDANT

ORDER REVOKING AND CANCELLING CODE MEMBERSHIP

A complaint having been filed on May 31, 1941, with the Bituminous Coal Division pursuant to the provisions of sections 4 II (j) and 5 (b) of the Bituminous Coal Act of 1937 by District Board No. 2, complainant, alleging *inter alia* that the defendant, J. C. Roman, a code member in District No. 2 operating the Grillo Mine, Mine Index No. 1995, in the Pittsburgh Seam, Allegheny County, Pennsylvania, wilfully violated the Bituminous Coal Code and Rules and Regulations thereunder in connection with the sale of coal to Thomas E. Brown for delivery to the Bureau of Mines, Pittsburgh, Pennsylvania;

Pursuant to an Order of the Director and after due notice to all interested parties a hearing having been held in this matter on August 18, 1941, before a duly designated Examiner of the Division, at a hearing room thereof in Pittsburgh, Pennsylvania;

All parties having joined in the waiving of the preparation and filing of a report by the Examiner and a record of the proceedings thereupon having been submitted to the Director for his consideration; the Director having made Findings of Fact, Conclusions of Law and having rendered an Opinion, which are filed herewith, in which it was concluded that the defendant's code membership should be revoked because of his violation of the following:

(1) Section 4 II (e) of the Act, the Code, and the Schedule of Effective Minimum Prices for District No. 2 for Truck Shipment, by selling and delivering during the period between January 31 and May 31, 1941, both dates inclusive, to

Thomas E. Brown, 928.15 net tons of 2" x 0 and over screenings produced at the Grillo Mine, Mine Index No. 1995, in the Pittsburgh Seam, Allegheny County, Pennsylvania, at prices ranging from $1.80 per ton f. o. b. the mine to $2.275 per ton delivered f. o. b. bins, Bureau of Mines, Pittsburgh, Pennsylvania, when the effective minimum price established therefor was $2.20 per net ton f. o. b. the mine;

(2) Section 4 II (g) of the Act, the Code, and Price Instruction No. 6 as contained in the aforesaid Schedule of Effective Minimum Prices by delivering as aforesaid to the Bureau of Mines, 472.35 net tons of the aforesaid tonnage and failing to add to the effective f. o. b. mine price therefor an amount at least equal as nearly as practicable to the actual transportation charges from the aforesaid mine to the aforesaid point of delivery;

(3) Rules 1, 4, and 6 of section VIII of the Marketing Rules and Regulations;

(4) Rules 1 and 2 of section XI of the Marketing Rules and Regulations; and

(5) Rules 1 and 3 of section X of the Marketing Rules and Regulations;

(6) Order No. 14 of the National Bituminous Coal Commission dated July 15, 1937, adopted as an Order of the Division on July 1, 1939, and Rule 7 of section VI of the Marketing Rules and Regulations;

(7) Order in General Docket No. 19;

Now, therefore, it is ordered, That the code membership of the defendant, J. C. Roman, a code member in District No. 2 be and it is hereby revoked and cancelled; and

It is further ordered, That prior to any reinstatement of the defendant, J. C. Roman, to membership in the Code, the defendant shall pay the United States a tax in the amount of $796.35 as provided in section 5 (c) of the Bituminous Coal Act of 1937.

Dated: November 3, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-8276; Filed, November 4, 1941; 10:33 a. m.]

[Docket No. A-941]

PETITION OF DISTRICT BOARD NO. 11 FOR THE ESTABLISHMENT OF MINIMUM PRICES FOR RAW OR WASHED COALS WHICH ARE CRUSHED, PULVERIZED OR REDUCED BY ANY METHOD DOWN TO THE SIZE DIMENSIONS PRESCRIBED FOR SIZE GROUPS 13 AND 16, INCLUSIVE, PURSUANT TO SECTION 4 II (d) OF THE BITUMINOUS COAL ACT OF 1937

ORDER GRANTING LEAVE TO AMEND ORIGINAL PETITION, AS AMENDED

The petitioner in the above-entitled matter having moved on October 20, 1941, for leave to amend the original petition herein, as amended, by further amending the prayer for relief contained therein; and

It appearing that said motion for leave to amend is reasonable;

Now, therefore, it is ordered, That the prayer for relief contained in the original petition in the above-entitled matter as previously amended is further amended by adding the following supplement to Schedule No. 2, annexed to and made a part of the petition of District Board No. 11 for leave to amend, dated July 21, 1941.

Supplement

1 Item No.	2 Type of preparation	3 Price group Nos.	4 Minimum prices
		Nut and stoker coals	
7	Crushed coal, made from raw or mechanically cleaned coal, which is rescreened into the size dimensions prescribed for nut and stoker coals (Size Groups 9, 10, 11, 12) and resultant carbon (Size Group 15).	1, 2, 3, 4, 13, 14.	15 cents per ton over the prices for Size Groups 9, 10, 11, 12.
		5, 6, 7, 8, 9, 10, 11, 12, 15, 16, 17, 18, 19, 20.	10 cents per ton over the prices for Size Groups 9, 10, 11, 12.
		Carbon	
		1,[1] 2, 3, 4, 7, 18, 19.	25 cents per ton over the prices for Size Group 15.
		14	20 cents per ton over the prices for Size Group 15.
		13, 15, 16, 17.	15 cents per ton over the prices for Size Group 15.
		5, 6, 8, 9, 10, 11, 12, 20.	10 cents per ton over the prices for Size Group 15.

[1] Includes Chinook Mine of Ayrshire Patoka Collieries Corporation, Mine Index No. 121.

Dated: November 3, 1941.

[SEAL] H. A. GRAY,
Director.

[F. R. Doc. 41-8277; Filed, November 4, 1941; 10:35 a. m.]

DEPARTMENT OF LABOR.

Wage and Hour Division.

NOTICE OF HEARING IN THE MATTER OF EMPLOYMENT OF LEARNERS AT LESS THAN THE MINIMUM WAGE RATE IN THE KNITTED AND MEN'S WOVEN UNDERWEAR AND COMMERCIAL KNITTING INDUSTRY AND IN THE KNITTED OUTERWEAR INDUSTRY

Whereas the Administrator of the Wage and Hour Division duly appointed Industry Committee Nos. 28 and 32 for the purpose of recommending to the Administrator the highest minimum wage rate (not in excess of 40 cents per hour) which will not substantially curtail employment in the Knitted and Men's Woven Underwear and Commercial Knitting Industry and the Knitted Outerwear Industry; and

Whereas the said Committees duly filed their Reports and Recommendations respectively on June 17, 1941 and August 19, 1941, to the effect that every employer shall pay not less than 40 cents per hour to each of his employees in the Knitted and Men's Woven Underwear and Commercial Knitting Industry as defined in Administrative Order No. 104 dated May 8, 1940 and in the Knitted Outerwear Industry as defined in Administrative Order No. 115 dated July 8, 1941; and

Whereas Industry Committee No. 28 unanimously adopted a resolution recommending to the Administrator that he consider a more liberal application of the learner regulations pertaining to this industry, the Committee being of the opinion that favorable consideration is warranted for allowing ten percent learners instead of five percent as heretofore, and such other modifications as the Administrator after consideration may find applicable for this industry; and

Whereas Industry Committee No. 32 unanimously adopted a resolution suggesting that the Administrator further study the problem of learners with a view to simplifying the present procedure:

Now, therefore, pursuant to the said Act and § 522.12 of the said Learner Regulations Part 522, notice is hereby given of a public hearing to be held in Room 3229, U. S. Department of Labor, 14th Street and Constitution Avenue, Northwest, Washington, D. C., to commence at 10:00 A. M. on November 14, 1941, before Alex G. Nordholm of the Hearings Branch of the Wage and Hour Division, hereby duly authorized as Presiding Officer to conduct said hearing and to take testimony for the purpose of determining what, if any, modifications of Part 522, §§ 522.060 to 522.071 (Regulations Applicable to the Employment of Learners in the Knitted Wear Industry) are warranted in the light of the above recommendations of the Industry Committee.

At this hearing opportunity to present evidence relevant to above questions will be afforded any interested person, provided the Presiding Officer shall have received from such person, prior to November 14, 1941, a notice of intention to appear, setting forth his name and address, the company or organization which he represents, and the approximate length of time required for such presentation. Any interested party unable to appear in person may file a brief or a statement which will be considered if received by November 14, 1941.

The definition of the Knitted and Men's Woven Underwear and Commercial Knitting Industry, insofar as it concerns the said hearing, shall be identical with the definition set forth in Administrative Order No. 104; dated May 8, 1940; and the definition of the Knitted Outerwear Industry shall be that set forth in

Administrative Order No. 115 dated July 8, 1941.

Signed at Washington, D. C. this 4th day of November 1941.

PHILLIP B. FLEMING,
Administrator.

[F. R. Doc. 41-8282; Filed, November 4, 1941; 11:42 a. m.]

SECURITIES AND EXCHANGE COMMISSION.

[File Nos. 54-33, 59-25]

IN THE MATTER OF THE UNITED CORPORATION

ORDER POSTPONING DATE OF HEARING

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 3rd day of November, A. D. 1941.

The Commission having by order dated October 17, 1941, postponed the hearing in these proceedings to November 4, 1941;

The United Corporation having requested a further postponement and the Commission having found that such further postponement is appropriate;

It is ordered, That the said hearing be, and it hereby is, postponed to November 17, 1941, at which time the hearing shall be reconvened for the purpose of taking evidence in accordance with the Opinion of the Commission this day issued.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 41-8281; Filed, November 4, 1941; 11:39 a. m.]

[File No. 70-423]

IN THE MATTER OF IOWA PUBLIC SERVICE COMPANY AND NEBRASKA PUBLIC SERVICE COMPANY

NOTICE REGARDING FILING SUBJECT TO RULE U-23

At a regular session of the Securities and Exchange Commission, held at its office in the City of Washington, D. C., on the 3d day of November, A. D. 1941.

Notice is hereby given that a declaration or application (or both), has been filed with this Commission pursuant to the Public Utility Holding Company Act of 1935 by the above-named party; and

Notice is further given that any interested person may, not later than November 20, 1941, at 4:45 P. M., E. S. T., request the Commission in writing that a hearing be held on such matter, stating the reasons for such request and the nature of his interest, or may request that he be notified if the Commission should order a hearing thereon. At any time thereafter such declaration or application, as filed or as amended, may become effective or may be granted, as provided in Rule U-23 of the Rules and Regulations promulgated pursuant to said Act. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington, D. C.

All interested persons are referred to said declaration or application, which is on file in the office of said Commission, for a statement of the transactions therein proposed, which are summarized below:

Nebraska Public Service Company, a wholly-owned subsidiary of Iowa Public Service Company which is a registered holding company and a subsidiary of Sioux City Gas and Electric Company (also a registered holding company), proposes to purchase for retirement 7,700 shares of its 10,000 outstanding shares of $50 par value common stock from Iowa Public Service Company for $325,000 in cash, thereby reducing its capital from $500,000 to $115,000.

The declaration or application recites that the Company considers section 12 of said Act and Rules U-42, U-43 and U-44 promulgated thereunder as being applicable to such transactions.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 41-8280; Filed, November 4, 1941; 11:39 a. m.]

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